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November 15, 2016					
FEDERAL MARITIME COMMISSION					

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DOCKET NO. 16-15

**WORLD IMPORTS, LTD., WORLD IMPORTS CHICAGO, LLC, and
WORLD IMPORTS SOUTH, LLC**

v.

OEC GROUP NEW YORK

SECOND ORDER HOLDING CASE IN ABEYANCE

On August 16, 2016, this proceeding was stayed at the request of the parties because the parties had reached an agreement in principle. World Imports would then be required to seek approval of the agreement from the Bankruptcy Court for the Eastern District of Pennsylvania. *World Imports, Ltd., World Imports Chicago, LLC, and World Imports South, LLC v. OEC Group New York*, FMC No. 16-15 (ALJ Aug. 16, 2016) (Order Holding Case in Abeyance).

On November 15, 2016, the parties filed a Joint Status Report stating that the parties anticipate filing the agreement for approval with the Bankruptcy Court "in the next few days." (Joint Status Report filed November 15, 2016.) At the request of the undersigned, the parties appeared for a telephone conference on November 15, 2016. Complainants appeared through its counsel John E. Kaskey and Respondent appeared through Brendan Collins. An audio recording was made of the conference and supplied to the parties. The Commission does not intend to prepare a written transcript of the conference.

The parties report that the agreement should be signed within the next few days and submitted to the Bankruptcy Court. The Court will issue a Rule 9019 notice to creditors before approving the agreement. The parties believe that the process should be completed by January 13, 2017, and requested the continuance of the stay to that date.

The parties have stated good cause for continuing to hold this proceeding in abeyance pending the Bankruptcy Court's decision. Therefore, it is hereby

ORDERED that the oral Joint Motion to Hold Case in Abeyance be **GRANTED**. It is

FURTHER ORDERED that the parties notify the Commission within seven days of a decision by the Bankruptcy Court. If the agreement is approved by the Bankruptcy Court, the attention of the parties is directed to Commission Rule 72 governing dismissal of Commission proceedings. 46 C.F.R. § 502.72. It is

FURTHER ORDERED that if the Bankruptcy Court has not approved the agreement by January 13, 2017, the parties file a motion to continue to hold the case in abeyance, or, if appropriate, notify the Commission that the litigation of this case should be commenced.



Clay G. Guthridge
Administrative Law Judge